

SOUTER, J., dissenting

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The Court rests its decision principally on the claim that immunity from suit was “a fundamental aspect of the sovereignty which the States enjoyed before the ratification of the Constitution,” *ante*, at 713, an aspect which the Court understands to have survived the ratification of the Constitution in 1788 and to have been “confirm[ed]” and given constitutional status, *ante*, at 714, by the adoption of the Tenth Amendment in 1791. If the Court truly means by “sovereign immunity” what that term meant at common law, see *ante*, at 737, its argument would be insupportable. While sovereign immunity entered many new state legal systems as a part of the common law selectively received from England, it was not understood to be indefeasible or to have been given any such status by the new National Constitution, which did not mention it. See *Seminole Tribe*, *supra*, at 132–142, 160–162, and n. 55 (SOUTER, J., dissenting). Had the question been posed, state sovereign immunity could not have been thought to shield a State from suit under federal law on a subject committed to national jurisdiction by Article I of the Constitution. Congress exercising its conceded Article I power may unquestionably abrogate such immunity. I set out this position at length in my dissent in *Seminole Tribe* and will not repeat it here.¹

The Court does not, however, offer today’s holding as a mere corollary to its reasoning in *Seminole Tribe*, substituting the Tenth Amendment for the Eleventh as the occasion

¹ The Court inexplicably protests that “the right to trial by jury and the prohibition on unreasonable searches and seizures . . . derive from the common law,” *ante*, at 733, but are nonetheless indefeasible. I cannot imagine how this could be thought relevant to my argument. These rights are constitutional precisely because they are enacted in the Sixth and Fourth Amendments, respectively, while the general prerogative of sovereign immunity appears nowhere in the Constitution. My point is that the common law rights that were not enacted into the Constitution were universally thought defeasible by statute.